

PENAL CODE
TITLE 12. TERRORISM
CHAPTER 76. TERRORISTIC OFFENSES

Sec. 76.01. DEFINITIONS. In this chapter:

(1) "Material support or resources" means:

- (A) currency or other financial securities;
- (B) financial services;
- (C) instruments of value;
- (D) lodging;
- (E) training;
- (F) safehouses;
- (G) false documentation or identification;
- (H) communications equipment;
- (I) computer equipment;
- (J) software;
- (K) facilities;
- (L) a deadly weapon;
- (M) lethal substances;
- (N) an explosive weapon or components of an explosive weapon, a chemical dispensing device, or a hoax bomb, as those terms are defined by Section [46.01](#);
- (O) personnel;
- (P) transportation; and
- (Q) other tangible assets, other than medical care provided by a licensed health care provider or religious materials.

(2) "Training" means teaching or demonstrating directly to another person, either in person or through a writing or by use of a computer or computer network, the use, application, or making of:

- (A) a weapon prohibited by Section [46.05](#);
- (B) a deadly weapon;
- (C) a component of an explosive weapon, as defined by Section [46.01](#); or
- (D) an incendiary device capable of causing injury or death to persons.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 5, eff. September 1, 2023.

Sec. 76.02. TERRORISM. (a) A person commits an offense if the person:

(1) commits or conspires to commit an offense under:

- (A) Chapter [19](#);
- (B) Section [20.02](#);
- (C) Section [20.03](#);
- (D) Section [20A.02](#);
- (E) Section [22.02](#);
- (F) Section [22.021](#);
- (G) Section [22.05](#), if punishable as a felony;
- (H) Section [22.07](#), if punishable as a felony;
- (I) Section [22.09](#);
- (J) Section [28.02](#);
- (K) Section [28.07](#), if punishable as a felony;
- (L) Section [29.03](#);
- (M) Section [38.152](#), if punishable as a felony; or
- (N) Section [46.08](#); and

(2) commits or conspires to commit that offense with the intent to:

(A) intimidate or coerce the public or a substantial group of the public; or

(B) influence, by intimidation or coercion, the policy, conduct, or activities of this state, a political subdivision of this state, or the United States.

(b) An offense under this section is one category higher than the most serious offense listed in Subsection (a) that was committed or conspired to be committed, except that:

(1) if the most serious offense is a Class A misdemeanor, the offense under this section is a Class A misdemeanor with a minimum term of confinement of 180 days; and

(2) if the most serious offense is a felony of the first degree, the offense under this section is a felony of the first degree with a minimum term of confinement of 15 years.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 5,

eff. September 1, 2023.

Sec. 76.03. AIDING IN COMMISSION OF TERRORISM. (a) A person commits an offense if the person intentionally raises, solicits, collects, or provides material support or resources with intent or knowledge that the material support or resources will be used, wholly or partly, to solicit, direct, supervise, plan, prepare, promote, carry out, assist, or aid in committing an offense under Section 76.02.

(b) An offense under this section is of the same degree as the offense under Section 76.02 that the person aided.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. 1518), Sec. 5, eff. September 1, 2023.

Sec. 76.04. HINDERING PROSECUTION OF TERRORISM. (a) A person commits an offense if, with intent to hinder the arrest, prosecution, conviction, or punishment of another for an offense under Section 76.02 or 76.03, the person:

- (1) harbors or conceals the other;
- (2) provides or aids in providing the other with any means of avoiding arrest or effecting escape;
- (3) warns the other of impending discovery or apprehension; or
- (4) tampers with any physical evidence that might aid in the discovery or apprehension of the other.

(b) An offense under this section is of the same degree as the offense under Section 76.02 or 76.03 for which the person committed the act described by Subsection (a).

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. 1518), Sec. 5, eff. September 1, 2023.

Sec. 76.045. TRANSNATIONAL REPRESSION. (a) In this section:

- (1) "Agent of a foreign government or foreign terrorist organization" means a person acting on behalf of or otherwise employed or controlled by a foreign government or foreign terrorist organization.

(2) "Foreign terrorist organization" has the meaning assigned by Section 71.01.

(3) "Protected conduct" means any speech or expressive conduct protected by the First Amendment to the United States Constitution or by Section 8, Article I, Texas Constitution.

(b) A person commits an offense if:

(1) the person commits or conspires to commit an offense under:

- (A) Section 20A.02;
- (B) Section 22.01;
- (C) Section 22.02;
- (D) Section 42.07;
- (E) Section 42.072; or
- (F) Section 43.05;

(2) the person commits or conspires to commit an offense described by Subdivision (1) with the intent to:

(A) cause another person to act on behalf of a foreign government or a foreign terrorist organization;

(B) cause another person to leave or be confined in the United States;

(C) discourage another person from engaging in protected conduct; or

(D) retaliate against another person for engaging in protected conduct; and

(3) the person commits or conspires to commit that offense as an agent of a foreign government or foreign terrorist organization.

(c) An offense under this section is one category higher than the most serious offense listed in Subsection (b)(1) that was committed or conspired to be committed, except that if the most serious offense is a felony of the first degree, the offense under this section is a felony of the first degree with a minimum term of confinement of 15 years.

Added by Acts 2025, 89th Leg., R.S., Ch. 149 (S.B. 1349), Sec. 1, eff. September 1, 2025.

Sec. 76.046. UNAUTHORIZED ENFORCEMENT OF FOREIGN LAW.

(a) In this section, "agent of a foreign government or foreign terrorist organization" has the meaning assigned by Section [76.045](#).

(b) A person commits an offense if, as an agent of a foreign government or foreign terrorist organization, the person, without the approval of this state or the United States:

(1) prevents another person in this state from violating the laws of a foreign government; or

(2) detects, investigates, monitors, or surveilles another person in this state for the purpose of preventing the other person from violating the laws of a foreign government.

(c) An offense under this section is a felony of the second degree.

Added by Acts 2025, 89th Leg., R.S., Ch. 149 (S.B. [1349](#)), Sec. 1, eff. September 1, 2025.

Sec. 76.05. ASSISTANCE BY ATTORNEY GENERAL. (a) The attorney general, if requested to do so by the attorney representing the state, may assist the attorney representing the state in the investigation or prosecution of an offense under this chapter.

(b) The attorney general shall designate one individual in the division of the attorney general's office that assists in the prosecution of criminal cases to coordinate responses to requests to assist in prosecution made under this section.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 5, eff. September 1, 2023.